

TOWN OF LUNENBURG FISCAL YEAR 2021



SPECIAL TOWN MEETING WARRANT

**Special Town Meeting
November 17, 2020 – 7:00 P.M.
Lunenburg Middle/High School Auditorium**

PLEASE BRING THIS WARRANT WITH YOU TO TOWN MEETING

Special Town Meeting COVID-19 Safety Precautions

The Town developed and wished to provide residents that would like to attend the Special Town Meeting the comprehensive plan on how voters can safely attend the Special Town Meeting on Tuesday, November 17, 2020. This safety plan includes maintaining social distancing procedures during entry, a seating plan, use of the microphones for voters to ask questions, hand count voting instead of voice voting, and social distancing while exiting town meeting.

Attendance

- If you are sick- stay home. If you are exhibiting a fever, cough, shortness of breath, chills, muscle pain, headache, sore throat, or new loss of taste or smell - stay home. If you have been exposed to someone with confirmed or suspected COVID-19 or have been told to isolate or quarantine- stay home.
- No hugging or hand shaking should occur.
- Attendees will not be allowed to congregate before, during, or after the town meeting.
- All attendees are encouraged to wear face coverings before, during and when exiting the building. Anyone that does not have a face mask will be offered one. Those not wearing face masks will be required to sit in a separate room that has audio and video of the meeting proceedings.

Social Distancing Procedures

Entering and Exiting the MS/HS:

- Every effort will be made to ensure the orderly arrival and exiting of individuals attending the town meeting in a manner that adheres to social distancing guidelines.
- The Town Moderator will announce how people can safely exit in an orderly fashion to maintain social distancing during their departure. Police officers will be present to assist attendees safely exiting the building maintaining six foot distances.

Check-in Procedures:

- Check-in will begin at 5:30 PM. All attendees will enter at the main entrance of the Middle/High School. The check-in stations will be placed outside the auditorium in large, open spaced area and social distancing will be enforced during this process.
- The Town Clerk will have tables set up on both sides of the entrance to separate check-in by precinct. Check-in lanes will be separated with pylons and caution tape to ensure attendees checking in maintain their social distance and attendees will be required to be spaced 6 feet apart from one another in the two, single file lines. There will be signage to direct voters with check-in line to get into by precinct and ground markings to indicate 6 foot spacing and police officers will be available to direct people to help maintain social distancing.
- There will be a hand sanitizer station placed ahead of the check-in tables so that attendees have an opportunity to use the hand sanitizer prior to checking in.
- Police Officers will be assigned to assist with the check-in process. One Police Officer will offer masks to anyone in the check-in line without a mask. If the attendee chooses not to wear a mask, a Police Officer will assist them from the check-in table to the separate entrance to the auditorium for non-masked attendees to the separate seating area for non-masked attendees.
- The Registration Workers checking in attendees will use personal protective equipment including masks, gloves, and face shields. They will supply attendees a copy of the warrant if the attendee did not bring the copy that was mailed to them and a pre-stapled packet of any handouts.

- At the time of check-in, voters will be given their voting card that they will need to keep as they will not be issued a second one.
- Voters not wearing a face mask will be directed to enter the auditorium through the opposite side of the auditorium and will be seated in a separate seating area than those wearing masks.

Speaking at the Microphone

- There will be two microphones for voters to use. One in front of the stage on opposite side of the Finance Committee table observing the 6 foot rule and another on the ramp on the left side of the stage. Microphones will be positioned at 5 feet high to minimize any adjustments. If a voter needs the microphone to be adjusted, a public access employee will be available to make the adjustment so the microphone is only touched by one person.
- The aisles that voters will get in line to speak at the microphone will be set up with spaced markings on the floor in 6 feet intervals and two seats on either side of the aisle will be left vacant to allow social distancing.
- After a voter speaks at the microphone, they will be directed to exit to the right of the stage to get back to their seat. This will ensure attendees are not passing each other in the aisles.
- Anyone that knows they will be speaking at the microphone during the meeting are encouraged to sit near the aisle that leads up to the microphone.
- All town officials on the stage and the Finance Committee seated on the floor of the auditorium will have individual microphones.

Face Coverings

- All attendees are encouraged to wear face coverings before, during and after the town meeting.
- Any person that chooses not to wear a mask will be seated in a separate room for individuals that choose not to wear a mask.

Seating

- Police Officers will be present to usher attendees to permitted seating areas and assist non-masked attendees to the separate seating area.
- To maintain social distancing, there should be three seats between each person and every other row will be blocked off to allow social distancing between rows.
- If families wish to sit together, they should group their seats keeping in mind there should be 3 seats between them and the next person not within their group.
- All town officials on the stage and on the auditorium floor will be spaced 6 feet apart.
- The front row seats will be left unoccupied, to create a more comfortable distance for microphone users and the Finance Committee members, unless it becomes necessary to use them.
- Unmasked citizens will be to the right lower seating area, facing the stage. Seating will start in the front from the second row working towards the rear.
- Guests will be seated to the left lower seating area, facing the stage.
- Overflow seating and audio will be set up in the gymnasium in the event additional seating is needed. Those seats will be spaced in 6 foot intervals to maintain social distancing.

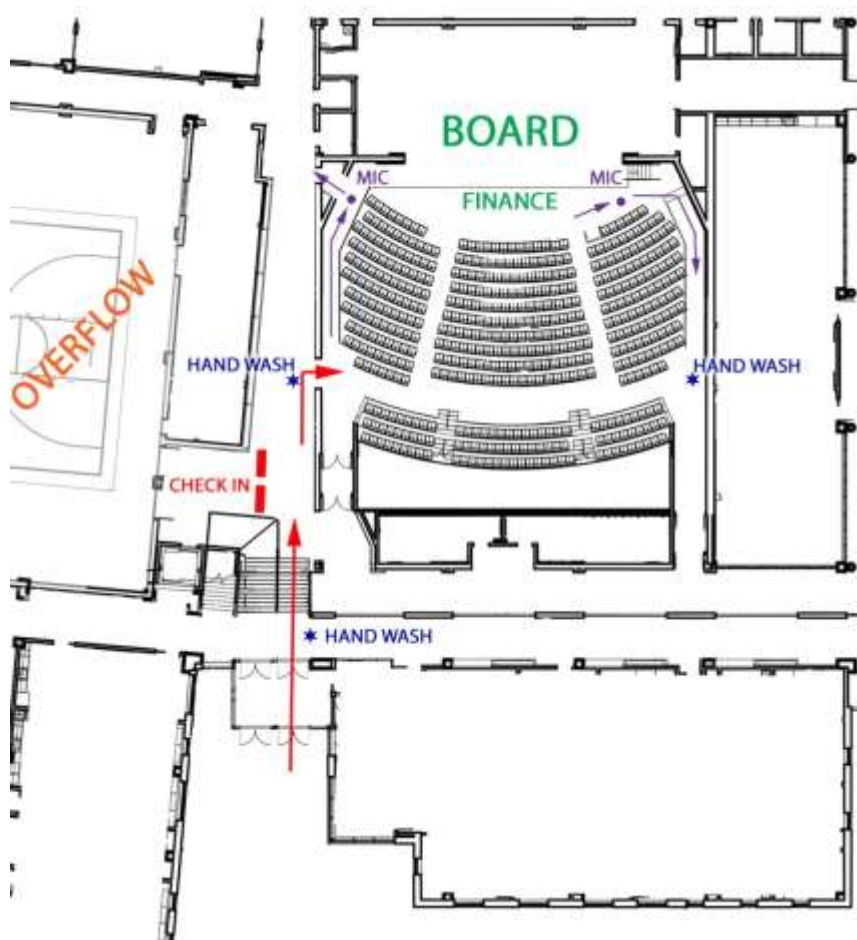
Voting

- There will be no voice votes during the town meeting. When the Town Moderator calls for a vote, all registered voters will vote by raising their hands holding the voting card they received during the check-in process, either in favor or opposed to the motion on the floor for each article.

Pre, During and Post Protocols

- The MS/HS Auditorium has maintained a regular cleaning schedule even through closure. The Auditorium will be cleaned prior to the town meeting and will include a focus high touch surfaces (e.g. bathrooms, microphones, door knobs).
- The restrooms will be cleaned every 30 minutes throughout the town meeting and will focus on high touch areas.
- Attendees will not be allowed to congregate before, during, or after the town meeting.
- There will not be any food or drink for sale and no food or drink, other than water, is allowed in the auditorium.
- Hand sanitizer stations will be set up in advance of the check-in area and at tables as voters enter into the auditorium.
- No hugging or hand shaking should occur.
- Presentations during town meeting will be kept as short as possible.

MAP FOR COVID-19 SAFETY PLAN FOR SPECIAL TOWN MEETING



INDEX OF NOVEMBER 17, 2020 SPECIAL TOWN MEETING ARTICLES

Article	Description	Cost	Source
1	FY 2021 Budget Adjustment Article	TBD	Raise & Appropriate and/or Transfer from Available Funds
2	Amend FY 2021 Capital Plan	\$494,333	Raise & Appropriate and/or Transfer from Available Funds
3	Payment of Prior Year Expenses	\$150	Raise & Appropriate
4	Conversion of Streetlights to LED by Unitil or Purchase of Streetlights	Option 1: Approx. \$66,000 Option 2: Approx. \$91,000	Raise & Appropriate
5	Regular Stabilization Fund	\$212,252	Raise & Appropriate
6	Special Purpose Stabilization Fund	\$250,000	Raise & Appropriate
7	OPEB Trust Fund	\$110,000	Raise & Appropriate
8	FY 2021 Fire Union Collective Bargaining Agreement	TBD	Transfer from Available Funds
9	FY 2021 Clerical Union Collective Bargaining Agreement	TBD	Transfer from Available Funds
10	FY 2021 PEG Access Capital Account	\$120,000	Transfer from Retained Earnings
11	Sewer Reserve Capacity Stabilization Fund	\$68,097.59	Transfer from Retained Earnings
12	Appropriation of bond premiums, revote prior borrowing and reserve portion of bond premium for future capital per MGL c. 44 sec. 20		
13	Amend Code of Lunenburg, Chapter 70 (Salary Administration Bylaw)		
14	Purchase of 250 Howard Street through Chapter 61 Right of First Refusal Process		
15	Acceptance of portion of 250 Howard Street as conservation land		
16	Greenhouse LLC (Bright Farms) Tax Increment Financing Agreement		

17	Interim Report from TCP Building Design Committee		
18	Transfer care, custody, and control of 111 Mulpus Road Rear from Select Board to Conservation Commission		
19	Transfer care, custody, and control of 970 NW Townsend Road Rear from Select Board to Conservation Commission		
20	Amendment to Chapter 204-1 “Stormwater Management; NPDES Phase II Permits”		

DEFINITIONS OF RECOMMENDATIONS UNDER EACH ARTICLE
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RECOMMEND APPROVAL: The board voted to recommend passage by Town Meeting.

NOT RECOMMENDED: The board voted to not recommend passage by Town Meeting.

NO RECOMMENDATION: The board voted to make no specific recommendation to Town Meeting.

DEFERRED: A recommendation will be announced by this board when the article is considered at Town Meeting.

TOWN OF LUNENBURG SPECIAL TOWN MEETING WARRANT

November 17, 2020

Worcester, ss:

To: Constable of the Town of Lunenburg, in the County of Worcester, Greetings:

In the name of the Commonwealth of Massachusetts, you are hereby directed to notify and warn the inhabitants of the Town of Lunenburg, qualified to vote in elections and town affairs, to meet in the Lunenburg Middle/High School Auditorium in said Lunenburg on Tuesday, the 17th day of November, 2020, at 7:00 o'clock in the evening (7:00 P.M.), for the purpose of taking action on the Special Town Meeting Warrant, and then and there to act on the following articles, viz:

SPECIAL TOWN MEETING ARTICLES

ARTICLE 1. To see if the Town will vote to raise and appropriate, borrow, or transfer from available funds, all sums of money necessary to amend the amounts voted for the Town's FY 2021 Budget, under Article 7 of the June 13, 2020 Town Meeting; or take any other action relative thereto. (Submitted by the Town Manager)

FINANCE COMMITTEE RECOMMENDATION: Recommend Approval

SELECT BOARD RECOMMENDATION: Recommend Approval

ARTICLE 2. To see if the Town will vote to raise and appropriate all sums of money necessary to amend the amounts voted for the FY 2021 Capital Plan, under Article 6 of the June 13, 2020 Town Meeting; or take any other action relative thereto. (Submitted by the Town Manager)

FINANCE COMMITTEE RECOMMENDATION: Deferred

SELECT BOARD RECOMMENDATION: Recommend Approval

ARTICLE 3. To see if the Town will vote to raise and appropriate or transfer from available funds, a sum of money for payment of prior year expenses; or take any other action relative thereto. (Submitted by the Finance Director)

FINANCE COMMITTEE RECOMMENDATION: Recommend Approval

SELECT BOARD RECOMMENDATION: Recommend Approval

ARTICLE 4. To see if the Town will vote to raise and appropriate, borrow, or transfer from available funds, a sum of money, for the purpose of converting the Town's existing streetlights to energy efficient and long lasting LED fixtures or, alternatively, acquiring said streetlights for potential future conversion to energy efficient and long lasting LED fixtures; or take any other action relative thereto. (Green Communities Task Force)

FINANCE COMMITTEE RECOMMENDATION: Deferred

SELECT BOARD RECOMMENDATION: Recommend Approval (4-1)

ARTICLE 5. To see if the Town will vote to raise and appropriate or transfer from available funds, a sum of money to the Stabilization Fund; or take any other action relative thereto. (Submitted by the Town Manager)

FINANCE COMMITTEE RECOMMENDATION: Deferred

SELECT BOARD RECOMMENDATION: Deferred

ARTICLE 6. To see if the Town will vote to raise and appropriate or transfer from available funds, a sum of money to the Special Purpose Stabilization Fund; or take any other action relative thereto. (Submitted by the Town Manager)

FINANCE COMMITTEE RECOMMENDATION: Deferred

SELECT BOARD RECOMMENDATION: Recommend Approval

ARTICLE 7. To see if the Town will vote to raise and appropriate or transfer from available funds, a sum of money to the OPEB Trust Fund that was created at the November 10, 2010 Special Town Meeting; or take any other action relative thereto. (Submitted by the Town Manager)

FINANCE COMMITTEE RECOMMENDATION: Recommend Approval (6-1)

SELECT BOARD RECOMMENDATION: Recommend Approval (4-1)

ARTICLE 8. To see if the Town will vote to raise and appropriate or transfer from available funds, a sum of money to fund the first year of the FY 21, FY 22 and FY 23 Lunenburg Professional Firefighters Collective Bargaining Agreement dated July 1, 2020 – June 30, 2023 with PFFM Local 5358A; or take any action relative thereto. (Submitted by the Town Manager)

FINANCE COMMITTEE RECOMMENDATION: Deferred

SELECT BOARD RECOMMENDATION: Deferred

ARTICLE 9. To see if the Town will vote to raise and appropriate or transfer from available funds, a sum of money to fund the first year of the FY 21, FY 22 and FY 23 Lunenburg Municipal Employees Collective Bargaining Agreement dated July 1, 2020 – June 30, 2023 with AFSCME, Council 93; or take any action relative thereto. (Submitted by the Town Manager)

FINANCE COMMITTEE RECOMMENDATION: Deferred

SELECT BOARD RECOMMENDATION: Deferred

ARTICLE 10. To see if the Town will vote to transfer from available funds the sum of \$120,000 to the capital line of the FY21 PEG Access and Cable Related Enterprise Fund; or take any other action relative thereto. (Submitted by PACC)

FINANCE COMMITTEE RECOMMENDATION: Recommend Approval

SELECT BOARD RECOMMENDATION: Recommend Approval

ARTICLE 11. To see if the Town will vote to transfer from available funds \$68,097.59 into the Reserve Capacity Stabilization Fund; or take any other action relative thereto. (Submitted by the Sewer Commission)

FINANCE COMMITTEE RECOMMENDATION: Recommend Approval

SELECT BOARD RECOMMENDATION: Recommend Approval

ARTICLE 12. To see if the Town will vote to appropriate all or a portion of the premium paid to the Town upon the sale of the Town's \$1,695,000.00 General Obligation Municipal Purpose Loan of 2020 Bonds, dated May 21, 2020, to pay costs of projects financed by such bonds and to reduce the amount authorized to be borrowed for such projects by a like amount, and/or to reserve all or a portion of the net premium to be appropriated for future capital projects; or take any other action relative thereto. (Submitted by Finance Director)

FINANCE COMMITTEE RECOMMENDATION: Recommend Approval

SELECT BOARD RECOMMENDATION: Recommend Approval

ARTICLE 13. To see if the Town will vote to amend the Code of Lunenburg, Chapter 70, entitled "Salary Administration Plan," as follows: the position of Intermittent Heavy Equipment Operator to be added and assigned Grade 9; and the position of Principal Assessor to be added and assigned Grade 15; or take any other action relative thereto. (Submitted by the Personnel Committee)

FINANCE COMMITTEE RECOMMENDATION: Recommend Approval

SELECT BOARD RECOMMENDATION: Recommend Approval

ARTICLE 14. To see if the Town will vote to authorize the Select Board to acquire, by gift, purchase, eminent domain, or otherwise, that certain property, determined to be unique, known as and numbered 250 Howard Street, more specifically identified in the Assessor's records as Map 16, Parcel 12, or any lesser portion thereof, for conservation and passive recreation purposes, to be under the care, custody and control of the Conservation Commission; and to raise, appropriate, borrow, or transfer from available funds a sum of money for said purpose, including the payment of all costs incidental thereto; or take any other action relative thereto. (Submitted by the Select Board)

FINANCE COMMITTEE RECOMMENDATION: Deferred
SELECT BOARD RECOMMENDATION: Deferred

ARTICLE 15. To see if the Town will vote to authorize the Select Board to exercise the Town's right of first refusal under the provisions of Massachusetts General Laws, Chapter 61, Section 8, as it may hereafter be amended, and to acquire, by gift, purchase, eminent domain or otherwise, that certain property, determined to be unique, owned by The Annette Alatalo Trust, Annette Alatalo, Trustee, being the land located at 250 Howard Street and that is described in a deed recorded at the Worcester North District Registry of Deeds at Book 4036, Page 1, containing approximately 15.22 acres and being shown on a plan of land recorded at said Registry in Plan Book 159, Plan 11, a.k.a. Lunenburg Assessor Parcel ID 016-0012-00, to be acquired by the Town under the provisions of Massachusetts General Laws, Chapter 40, Section 8C, as it may hereafter be amended, and other Massachusetts statutes relating to conservation, to be under the care, custody and control of the Conservation Commission for conservation and passive recreation purposes; and to raise and appropriate, borrow, or transfer from available funds a sum of \$50,000 for said purpose, including the payment of all costs incidental or relative thereto; and that authorize the Select Board to enter into all agreements and execute any and all instruments as may be necessary on behalf of said Town to effect the aforesaid acquisition; or take any other action relative thereto. (Submitted by the Open Space Committee)

FINANCE COMMITTEE RECOMMENDATION: Deferred
SELECT BOARD RECOMMENDATION: Deferred

ARTICLE 16. To see if the Town will vote, pursuant to Massachusetts General Law Chapter 40, Section 59, and Chapter 23A, Sections 3A through 3F, and the applicable regulations thereunder, (a) to approve a Tax Increment Financing (TIF) Agreement between the Town and MA Greenhouse LLC, for property shown on Assessors Map 57, Parcel 31, and located at 361 Massachusetts Avenue (the "TIF Agreement"), which TIF Agreement provides for real estate tax exemptions at the exemption rate schedules set forth therein; (b) to authorize the Select Board to execute the TIF Agreement, and any documents related thereto, and to take such other actions as are necessary or appropriate to implement those documents; and (c) to approve application to the Economic Assistance Coordinating Council (EACC) under the Economic Development Incentive Program for approval and designation of the Economic Opportunity Area, TIF Zone and TIF Plan for 361 Massachusetts Avenue; or to take any other action relative thereto. (Submitted by the Select Board)

FINANCE COMMITTEE RECOMMENDATION: Deferred
SELECT BOARD RECOMMENDATION: Deferred

ARTICLE 17. To see if the Town will vote to hear an interim report from the TCP Building Design Committee and/or from representative(s) from the design firm; or take any other action relative thereto.(Submitted by the TCP Building Design Committee)

FINANCE COMMITTEE RECOMMENDATION: Recommend Approval
SELECT BOARD RECOMMENDATION: Recommend Approval

ARTICLE 18. To see if the Town will vote to transfer the care, custody, and control of certain property known as and numbered 111 Mulpus Road Rear, more specifically identified in the Assessor's records as Map 43, Parcel 25, from the Select Board for general municipal purposes to the Conservation Commission for conservation and passive recreation purposes; or take any other action relative thereto. (Submitted by the Conservation Commission)

FINANCE COMMITTEE RECOMMENDATION: No Recommendation (No Financial Impact)

SELECT BOARD RECOMMENDATION: Recommend Approval (4-1)

ARTICLE 19. To see if the Town will vote to transfer the care, custody, and control of certain property known as and numbered 970 NW Townsend Road Rear, more specifically identified in the Assessor's records as Map 4, Parcel 1, from the Select Board for general municipal purposes to the Conservation Commission for conservation and passive recreation purposes; or take any other action relative thereto. (Submitted by the Conservation Commission)

FINANCE COMMITTEE RECOMMENDATION: No Recommendation (No Financial Impact)

SELECT BOARD RECOMMENDATION: Recommend Approval (4-1)

ARTICLE 20: To see if the Town will vote to amend the Code of Lunenburg, Chapter 204-1, entitled "Stormwater Management; NPDES Phase II Permits," as depicted below, with additions underlined and deletions stricken-through, or take any other action relative thereto. (Submitted by the Planning Board)

FINANCE COMMITTEE RECOMMENDATION: Deferred

SELECT BOARD RECOMMENDATION: Deferred

§ 204-1 Stormwater management; NPDES Phase II permits.

A. Purpose and intent.

- (1) Regulation of discharges to the municipal separate storm sewer system (MS4) is necessary for the protection of the Town of Lunenburg's water bodies and groundwater, and to safeguard the public health, safety, welfare and the environment. Increased and contaminated stormwater runoff associated with developed land uses and the accompanying increase in impervious surface are major causes of impairment of water quality and flow in lakes, ponds, streams, rivers, wetlands, and groundwater which result in the contamination of drinking water supplies; erosion of stream channels; alteration or destruction of aquatic and wildlife habitat; and flooding. This bylaw establishes minimum stormwater management standards for the final conditions that result from development and redevelopment projects to minimize adverse impacts off-site and downstream which would be borne by abutters, townspeople and the general public.
- (2) This regulation requires local review and approval of a stormwater management plan for all development and redevelopment projects that disturb one acre or more. In addition to these regulations, the owner and/or developer is also obligated to meet the requirements of the Federal Environmental Protection Agency's (EPA) regulations for stormwater management.

B. The following definitions shall apply in the interpretation and implementation of this Bylaw. Additional definitions may be adopted by separate regulation:

- (1) ACRE: forty-three thousand, five-hundred and sixty square feet (43,560 sq. ft.)
- (2) AGRICULTURAL USE: The normal maintenance or improvement of land in agricultural or aquacultural use, as defined by the Massachusetts Wetlands Protection Act, M.G.L. c. 131, § 40, and its implementing regulations.
- (3) ALTER: Any activity, which will measurably change the ability of a ground surface area to absorb water or will change existing surface drainage patterns. Alter may be similarly represented as "alteration of drainage characteristics," and "conducting land disturbance activities."
- (4) APPLICANT: Any person, individual, partnership, association, firm, company, corporation, trust, authority, agency, department, or political subdivision, of the Commonwealth of Massachusetts or the

federal government to the extent permitted by law requesting a Stormwater Management Permit for proposed land-disturbance activity.

- (5) BEST MANAGEMENT PRACTICE (BMP): Structural, non-structural and managerial techniques that are recognized to be the most effective and practical means to prevent and/or reduce increases in stormwater volumes and flows, reduce point source and nonpoint source pollution, and promote stormwater quality and protection of the environment. “Structural” BMPs are devices that are engineered and constructed to provide temporary storage and treatment of stormwater runoff. “Nonstructural” BMPs use natural measures to reduce pollution levels, do not require extensive construction efforts, and/or promote pollutant reduction by eliminating the pollutant source.
- (6) BETTER SITE DESIGN: Site design approaches and techniques that can reduce a site’s impact on the watershed through the use of nonstructural stormwater management practices. Better site design includes conserving and protecting natural areas and greenspace, reducing impervious cover, and using natural features for stormwater management.
- (7) CERTIFICATE OF COMPLETION: Document issued by the Town of Lunenburg Planning Board, its employees, or authorized agents upon receipt of a final inspection report and acknowledgement that all conditions of the Stormwater Management Permit have been satisfactorily completed.
- (8) ENFORCEMENT ORDER: A written order issued by the Town of Lunenburg to enforce the provisions of this Article.
- (9) MUNICIPAL SEPARATE STORM SEWER SYSTEM (MS4) or MUNICIPAL STORM DRAIN SYSTEM: The system of conveyances designed or used for collecting or conveying stormwater, including any road with a drainage system, street, gutter, curb, inlet, piped storm drain, pumping facility, retention or detention basin, natural or man-made or altered drainage channel, reservoir, and other drainage structure that together comprise the storm drainage system owned or operated by the Town of Lunenburg, MA.
- (10) NATIONAL POLLUTANT DISCHARGE ELIMINATION SYSTEM (NPDES) STORMWATER DISCHARGE PERMIT: A permit issued by the EPA or jointly with the Commonwealth of Massachusetts that authorizes the discharge of stormwater to waters of the United States.
- (11) NEW DEVELOPMENT: Any construction, land alteration, or addition of impervious surfaces on previously undeveloped sites resulting in a total disturbance of land equal to or greater than 1 acre (or activities that are part of a larger common plan of development disturbing greater than 1 acre) that does not meet the definition of Redevelopment.
- (12) NONPOINT SOURCE POLLUTION: Pollution from many diffuse sources caused by rainfall or snowmelt moving over and through the ground. As the runoff moves, it picks up and carries away natural and human-made pollutants, finally depositing them into water resource areas.
- (13) OWNER: A person with a legal or equitable interest in property.
- (14) PERSON: Any individual, group of individuals, association, partnership, corporation, company, business organization, trust, estate, the Commonwealth or political subdivision thereof to the extent subject to Town Bylaws, administrative agency, public or quasi-public corporation or body, the Town of Lunenburg and any other legal entity, its legal representatives, agents, or assigns.

- (15) PRE-DEVELOPMENT: The conditions that exist at the time that plans for the land development of a tract of land are submitted to the Lunenburg Conservation Commission or Planning Board. Where phased development or plan approval occurs (preliminary grading, roads and utilities, etc.), the existing conditions at the time prior to the first plan submission shall establish predevelopment conditions.
- (16) POST-DEVELOPMENT: The conditions that reasonably may be expected or anticipated to exist after completion of the land development activity on a specific site or tract of land. Post-development refers to the phase of a new development or redevelopment project after completion, and does not refer to the construction phase of a project.
- (17) RECHARGE: The replenishment of underground water reserves.
- (18) REDEVELOPMENT: Development, rehabilitation, expansion, demolition, or phased projects that disturb the ground surface or increase the impervious area on previously developed sites. Any construction, land alteration, or improvement of impervious surfaces resulting in total disturbance of land equal to or greater than 1 acre (or activities that are part of a larger common plan of redevelopment disturbing greater than 1 acre) that does not meet the definition of New Development.
- (19) STORMWATER AUTHORITY: The Town of Lunenburg Planning Board or its authorized agent(s). The Planning Board is responsible for coordinating the review, approval and permit process as defined in this Bylaw.
- (20) STORMWATER MANAGEMENT PERMIT (SMP): A permit issued by the Planning Board after review of an application, plans, calculations, and other supporting documents, which is designed to protect the environment of the Town from the deleterious effects of uncontrolled and untreated stormwater runoff.
- (21) WATERS OF THE COMMONWEALTH: All waters within the jurisdiction of the Commonwealth of Massachusetts, including, without limitation, rivers, streams, lakes, ponds, springs, impoundments, estuaries, wetlands, coastal waters, groundwaters, and vernal pools.
- (22) WETLAND RESOURCE AREAS: Areas specified in the Massachusetts Wetlands Protection Act Regulations, 310 CMR 10.00, as amended, and in the Town of Lunenburg Article XXI General Wetlands Protection Bylaw, as amended.

B.C. The objectives of this bylaw are:

- (1) To require practices to control the flow of stormwater from new and redeveloped sites to the Town's storm drainage system in order to prevent flooding and erosion;
- (2) To protect groundwater and surface water from degradation;
- (3) To promote groundwater recharge;
- (4) To prevent pollutants from entering the Town's municipal separate storm sewer system (MS4) and to minimize discharge of pollutants from the MS4;
- (5) To ensure adequate long-term operation and maintenance of structural stormwater best management practices so that they work as designed;

- (6) To comply with state and federal statutes and regulations relating to stormwater discharges; ~~and~~
- (7) To establish Lunenburg's legal authority to ensure compliance with the provisions of this bylaw through inspection, monitoring, and enforcement.
- (8) Establish regulations of land development activities that preserve the health of water resources.
- (9) Require that the amount and quality of stormwater runoff from new development is equal to or better than pre-development conditions in order to reduce flooding, stream erosion, pollution, property damage and harm to aquatic life.
- (10) Establish stormwater management standards and design criteria to control the quality and quantity of stormwater runoff.
- (11) Encourage the use of low-impact development practices, such as reducing impervious cover and preserving greenspace and other natural areas.

~~CD.~~ Applicability. No person may undertake a construction activity following the effective date of this Bylaw, including clearing, grading and excavation that results in a land disturbance that will disturb equal to or greater than one acre of land or will disturb less than one acre of land but part of a larger common plan of development or sale that will ultimately disturb equal to or greater than one acre of land ~~draining to the Town of Lunenburg's municipal separate storm sewer system~~, without a permit from the ~~special~~-permit granting authority. Construction activity does not include routine maintenance that is performed to maintain the original line and grade, hydraulic capacity or the original purpose of the site. Construction activities that are exempt are:

- (1) Normal maintenance and improvement of land in agricultural use as defined by the Wetlands Protection Act regulation, 310 CMR 10.04;
- (2) Maintenance of existing landscaping, gardens or lawn areas associated with a single-family dwelling;
- (3) The construction of fencing that will not substantially alter existing terrain or drainage patterns;
- (4) Construction of utilities other than drainage (gas, water, electric, telephone, etc.) which will not alter terrain or drainage patterns;
- (5) ~~Work activities of municipal, state or federal agencies or their agents outside of the Phase II boundaries as shown on the latest U.S. Environmental Protection Agency's National Pollutant Discharge Elimination System (NPDES) Phase II maps.~~ Emergency repairs to any stormwater management facility or practice that poses a threat to public health or safety.-
- ~~(6) As authorized in the Phase II Small MS4 General Permit for Massachusetts, stormwater discharges resulting from the activities identified in Subsection C(1) that are wholly subject to jurisdiction under the Wetlands Protection Act and demonstrate compliance with the Massachusetts Stormwater Management Policy as reflected in an order of conditions issued by the Conservation Commission are exempt from compliance with this bylaw.-~~

~~DE.~~ Permits and procedures.

- (1) The ~~special~~-permit granting authority (SPGA) under this bylaw shall be the Lunenburg Planning Board. Such

~~special~~ permit shall be granted if the SPGA determines, in conjunction with the Conservation Commission, Department of Public Works, Board of Health and Building Commissioner, that the intent of this bylaw, as well as specific criteria, are met. The SPGA shall not grant a special permit under this section unless the petitioner's application materials include, in the SPGA's opinion, sufficiently detailed, definite, and credible information to support positive findings in relation to the standards given in this section. The SPGA shall document the basis for any departures from the recommendations of the other Town boards or departments in its decision.

- (2) The site owner or his agent shall file with the SPGA ~~130~~ copies of a completed application package for a stormwater management permit (SMP). Permit issuance is required prior to any site-altering activity. While the applicant can be a representative, the permittee must be the owner of the site. The SMP application package shall include:
 - (a) A completed application form with original signatures of all owners;
 - (b) ~~Ten-Thirteen~~ copies of the stormwater management plan and project description as specified in ~~Subsection E(4)F~~ of this Bylaw;
 - (c) ~~Ten-Thirteen~~ copies of the erosion and sediment control operation and maintenance plan as required by Subsection ~~F-G~~ of this ~~bylaw~~ Bylaw;
 - (d) Thirteen copies of the operation and maintenance plan as required by Section H of this Bylaw.
 - (e) Payment of the application and review fees.
 - (f) A Certified List of Abutters within 300 feet of the property boundaries, obtained from the Assessor's Office, along with 2 stamped envelopes for each unique abutter contained in the list. Abutters located in other communities and within 300 feet of the property boundaries must also be included.
 - (g) A PDF file or files containing all application materials and plans emailed to the Planning Board Office.
- (3) Entry. Filing and application for a permit grants the SPGA, or its agent, permission to enter the site to verify the information in the application and to inspect for compliance with the resulting permit.
- (4) Other boards. The SPGA shall give one copy of the application package to the designated technical reviewers, which include the Conservation Commission, Department of Public Works, and Building Commissioner, for the purpose of reviewing the permit application. The SPGA may also engage the services of a peer review engineer at its discretion.
- (5) Fee structure.

The PGA shall obtain with each submission an application fee established by the PGA. To assist the PGA in its review of plans during the Permit approval process, the PGA, at its discretion may hire an engineer or other qualified professional to act as a consultant to the Board. The cost of these consultant services shall be paid by the Applicant and the PGA will not sign any Permit decision until all consulting fees are paid in full.

Applicants must pay the following fees before the permitting process may begin:

- (a) Application Fee \$100/ Acre rounded up to the nearest acre
(Maximum fee is \$1,000)

(b) Application fee for an amendment \$100

(c) Fees for a professional peer review Assessed on a case by case basis

~~The SPGA shall obtain with each submission an application fee established by the SPGA. The SPGA is authorized to retain a registered professional engineer or other professional consultant to advise the SPGA on any or all aspects of these plans. Applicants must pay review fees before the review process may begin.~~

- (6) Actions. The SPGA's action, rendered in writing, shall consist of either:
- (a) Approval of the stormwater management permit application based upon determination that the proposed plan meets the standards in Subsection **EF(2)** and will adequately protect the water resources of the community and is in compliance with the requirements set forth in this bylaw;
 - (b) Approval of the stormwater management permit application subject to any conditions, modifications or restrictions required by the SPGA which will ensure that the project meets the standards in Subsection **EF(2)** and adequately protects water resources, as set forth in this bylaw;
 - (c) Disapproval of the stormwater management permit application based upon a determination that the proposed plan, as submitted, does not meet the standards in Subsection **EF(2)** or adequately protect water resources, as set forth in this bylaw.
- (7) Project completion. At completion of the project, the permittee shall submit as-built record drawings of all structural stormwater controls and treatment best management practices required for the site. The as-built drawing shall show deviations from the approved plans, if any, and be certified by a registered professional engineer.

E. Contents of stormwater management plan.

- (1) Application. The stormwater management plan shall contain sufficient information for the SPGA to evaluate the environmental impact, effectiveness, and acceptability of the measures proposed by the applicant for reducing adverse impacts from stormwater. The plan shall be designed to meet the Massachusetts stormwater management standards as set forth in Subsection **EF(2)** below and the current edition of the Massachusetts Department of Environmental Protection guidelines and policies. The plan shall be designed to also meet the policy standards of the SPGA. The stormwater management plan shall fully describe the project in drawings, and narrative. It shall include, at a minimum:
- (a) Names, addresses, and telephone numbers of the owner, applicant, and person(s) or firm(s) preparing the plan;
 - (b) Locus map;
 - (b) The existing zoning, and land use at the site;
 - (c) The proposed land use;
 - (d) The location(s) of existing and proposed easements;
 - (e) The location of existing and proposed utilities;
 - (f) The site's existing and proposed topography, with contours at one or two-foot intervals and additional spot grades as needed to depict detailed drainage patterns~~two-foot intervals;~~

- (gh) The existing site hydrology (both groundwater recharge and surface runoff);
- (hi) A description and delineation of existing stormwater conveyances, impoundments, ~~and wetlands~~ drinking water resource areas, sewage disposal systems, swimming beaches, or other critical environmental resource areas, on or adjacent to the site or into which stormwater flows;
- (ij) Description of subsurface conditions in areas to be used for stormwater retention, detention, or infiltration;
- (k) A delineation of one-hundred-year floodplains, if applicable;
- (jl) Estimated high groundwater elevation in areas to be used for stormwater retention, detention, or infiltration, determined as outlined in 310 CMR 15.103;
- (~~km~~) The existing and proposed vegetation and ground surfaces, with runoff coefficient for each;
- (ln) A drainage area map showing pre- and post-construction watershed boundaries, drainage area and stormwater flow paths;
- (~~mo~~) A description and drawings of all components of the proposed drainage system, including:
 - [1] Locations, cross sections, and profiles of all brooks, streams, drainage swales and their method of stabilization;
 - [2] All measures for the detention, retention, or infiltration of water;
 - [3] All measures for the protection of water quality;
 - [4] The structural details for all components of the proposed drainage systems and stormwater management facilities;
 - [5] Notes on drawings specifying materials to be used, construction specifications, and typicals; and
 - [6] Analysis of existing and proposed hydrology with supporting calculations;
 - [7] Calculations supporting the estimate of stormwater treatment performance; and
 - [8] Calculations supporting the design of infiltration practices, including design infiltration rates, estimated dewatering times, and mounding analyses, where applicable.
- ~~Expected hydrology, with supporting calculations;~~
- (np) Proposed improvements, including location of buildings or other structures, impervious surfaces, and drainage facilities, if applicable;
- (oq) Timing, schedules, and sequence of development, including clearing, stripping, rough grading, construction, final grading, and vegetative stabilization;
- (pr) A maintenance schedule for the period of construction; ~~and~~
- (qs) Stormwater runoff shall be calculated using latest Northeast Regional Climate Center (NRCC) extreme precipitation amounts for recurrence intervals (storm events) 2-, 10-, 25-, 50- and 100-year frequencies; Any other information requested by the SPGA.

- (t) An Erosion and Sediment Control Plan as detailed in Section G;
 - (u) An Operation and Maintenance Plan as detailed in Section H; and,
 - (v) Any other information requested by the PGA.
- (2) Standards. Projects shall meet the standards of the Massachusetts Stormwater Management Policy, which are as follows:
- (a) No new stormwater conveyances (e.g., outfalls) may discharge untreated stormwater directly to or cause erosion in wetlands or water of the commonwealth;
 - (b) Low Impact Development (LID) site planning and design strategies must be implemented if practicable in order to reduce the discharge of stormwater from development sites;
 - (c) Stormwater management system design shall be consistent with the intent and guidance provided by the latest Massachusetts Stormwater Handbook and per industry standard methods. While design should be completed per Massachusetts Stormwater Handbook specifications to the fullest extent feasible, the PGA reserves the right to waive and/or modify minor disparities between the design and the Massachusetts Stormwater Handbook on a project-specific basis.
 - (d) Stormwater management systems on new development shall be designed to meet an average annual pollutant removal equivalent to 90% of the average annual load of Total Suspended Solids (TSS) related to the total post-construction impervious area on the site AND 60% of the average annual load of Total Phosphorus (TP) related to the total post-construction impervious surface area on the site.
 - [1] Average annual pollutant removal requirements in E.2.(d) are achieved through one of the following methods:
 - (i) Installing BMPs that meet the pollutant removal percentages based on calculations developed consistent with EPA Region 1's BMP Accounting and Tracking Tool (2016) or other BMP performance evaluation tool provided by EPA Region 1, where available. If EPA Region 1 tools do not address the planned or installed BMP performance, then any federally or State-approved BMP design guidance or performance standards (e.g., State stormwater handbooks and design guidance manuals) may be used to calculate BMP performance; or
 - (ii) Retaining the volume of runoff equivalent to, or greater than, 1.0 inch multiplied by the total post-construction impervious surface area on the new development site; or
 - (iii) Meeting a combination of retention and treatment that achieves the above standards; or
 - (iv) Utilizing offsite mitigation that meets the above standards within the same USGS HUC12 as the new development site.
 - (e) Stormwater management systems on redevelopment sites shall be designed to meet an average annual pollutant removal equivalent to 80% of the average annual postconstruction load of TSS related to the total post-construction impervious area on the site AND 50% of the average annual

load of TP related to the total post-construction impervious surface area on the site.

[1] Average annual pollutant removal requirements in E.2.(e) are achieved through one of the following methods:

- (i) Installing BMPs that meet the pollutant removal percentages based on calculations developed consistent with EPA Region 1's BMP Accounting and Tracking Tool (2016) or other BMP performance evaluation tool provided by EPA Region 1, where available. If EPA Region 1 tools do not address the planned or installed BMP performance, then any federally or State-approved BMP design guidance or performance standards (e.g., State stormwater handbooks and design guidance manuals) may be used to calculate BMP performance; or
- (ii) Retaining the volume of runoff equivalent to, or greater than, 0.8 inches multiplied by the total post-construction impervious surface area on the redevelopment site; or
- (iii) Meeting a combination of retention and treatment that achieves the above standards; or
- (iv) Utilizing offsite mitigation that meets the above standards within the same USGS HUC12 as the redevelopment site.

(f) Redevelopment activities that are exclusively limited to maintenance and improvement of existing roadways, (including widening less than a single lane, adding shoulders, correcting substandard intersections, improving existing drainage systems, and repaving projects) shall improve existing conditions where feasible and are exempt from part Section F.2.(e). Roadway widening or improvements that increase the amount of impervious area on the redevelopment site by greater than or equal to a single lane width shall meet the requirements of Section F.2.(e).

(3) Project changes. The permittee, or its agent, shall notify the PGA in writing of any change or alteration of a land-disturbing activity authorized in a stormwater management permit before any change or alteration occurs. If the PGA determines that the change or alteration is significant, based on the design standards listed in Subsection F(2) and accepted construction practices, the PGA may require that an amended stormwater management permit application be filed and a public hearing held. If any change or deviation from the stormwater management permit occurs during a project, the PGA may require the installation of interim measures before approving the change.

~~No new stormwater conveyances (e.g., outfalls) may discharge untreated stormwater directly to or cause erosion in wetlands or water of the commonwealth.~~

~~(b) Stormwater management systems must be designed so that post-development peak discharge rates do not exceed pre-development peak discharge rates.~~

~~(c) Loss of annual recharge to groundwater should be minimized through the use of infiltration measures to the maximum extent practicable. The annual recharge from the post-development site should approximate the annual recharge rate from the pre-development or existing site conditions, based on soil types.~~

~~(d) For new development, stormwater management systems must be designed to remove 80% of the average annual load (post-development conditions) of total suspended solids (TSS). It is presumed that this standard is met when:~~

~~[1] Suitable nonstructural practices for source control and pollution prevention are implemented;~~

- ~~[2] Stormwater management best management practices (BMPs) are sized to capture the prescribed runoff volume; and~~
- ~~[3] Stormwater management BMPs are maintained as designed.~~
- ~~(e) Stormwater discharges from areas with higher potential pollutant loads require the use of specific stormwater management BMPs. The use of infiltration practices without pretreatment is prohibited.~~
- ~~(f) Stormwater discharges to critical areas must utilize certain stormwater management BMPs approved for critical areas (see MA DEP's Stormwater Management Volume I: Stormwater Policy Handbook). Critical areas are outstanding resource waters (ORWs), cold water fisheries, and recharge areas for public water supplies.~~
- ~~(g) Redevelopment of previously developed sites must meet the stormwater management standards to the maximum extent practicable. However, if it is not practicable to meet all the standards, new (retrofitted or expanded) stormwater management systems must be designed to improve existing conditions.~~
- ~~(h) Erosion and sediment controls must be implemented to prevent impacts during disturbance and construction activities.~~
- ~~(i) All stormwater management systems must have an operation and maintenance plan to ensure that systems function as designed.~~
- ~~(j) When one or more of the standards cannot be met, an applicant may demonstrate that an equivalent level of environmental protection will be provided.~~
- ~~(3) Project changes. The permittee, or its agent, shall notify the SPGA in writing of any change or alteration of a land disturbing activity authorized in a stormwater management permit before any change or alteration occurs. If the SPGA determines that the change or alteration is significant, based on the design standards listed in Subsection E(2) and accepted construction practices, the SPGA may require that an amended stormwater management permit application be filed and a public hearing held. If any change or deviation from the stormwater management permit occurs during a project, the SPGA may require the installation of interim measures before approving the change.~~

G. Erosion and sediment control plans. An erosion and sediment control plan is required at the time of application for all projects. The erosion and sediment control plan shall contain sufficient information about the nature and purpose of the proposed development, pertinent conditions of the site and adjacent areas, proposed erosion and sedimentation controls, and proposed control for other wastes on construction sites such as demolition debris, litter, and sanitary wastes to ensure they are not discharged to the MS4, drainage system, or waters of the commonwealth. The applicant shall submit such material as is necessary to show that the proposed development will comply with the design requirements as follows:

- (1) Minimize total area of disturbance.
- (2) Sequence activities to minimize simultaneous areas of disturbance.
- (3) Minimize soil erosion and control sedimentation during construction, provided that prevention of erosion is preferred over sedimentation control.
- (4) Divert uncontaminated water around disturbed areas.

- (5) Maximize infiltration and groundwater recharge.
- (6) Install, inspect, and maintain all Erosion and Sediment Control measures in accordance with the manufacturer's specifications and good engineering practices.
- (7) Prevent off-site transport of sediment and wastes.
- (8) Protect all storm drain inlets and armor all newly constructed outlets.
- (9) Protect and manage on and off-site material storage areas (overburden and stockpiles of dirt, borrow areas, or other areas used solely by the permitted project are considered a part of the project).
- (10) Comply with applicable federal, state and local laws and regulations including waste disposal, sanitary sewer or septic system regulations, and air quality requirements, including dust control.
- (11) Institute interim and permanent stabilization measures, which shall be instituted on a disturbed area as soon as practicable but no more than fourteen (14) days after construction activity has temporarily or permanently ceased on that portion of the site.
- (12) Properly manage on-site construction waste and materials.
- (13) Stabilize construction site entrances and exits and prevent off-site vehicle tracking of sediments.
- (14) Ensure that any stormwater BMP (for post-construction stormwater management) installed during construction will be protected from compaction, siltation, and erosion or will be restored or replaced such that the BMP will be capable of functioning as designed in accordance with these stormwater regulations.

FH. Operation and maintenance plans. An operation and maintenance plan (O&M plan) is required at the time of application for all projects. The maintenance plan shall be designed to ensure compliance with the permit, this bylaw and that the Massachusetts Surface Water Quality Standards, 314 CMR 4.00 are met in all seasons and throughout the life of the system. The operation and maintenance plan shall remain on file with the SPGA and shall be an ongoing requirement. The O&M plan shall include:

- (1) The name(s) of the owner(s) for all components of the system.
- (2) Maintenance agreements that specify:
 - (a) The names and addresses of the person(s) responsible for operation and maintenance.
 - (b) The person(s) responsible for financing maintenance and emergency repairs.
- (3) Maintenance schedule for all drainage structures, including swales and ponds.
- (4) List of easements, with the purpose and location of each.
- (5) The signature(s) of the owner(s).
- (6) Stormwater management easement(s).
 - (a) Stormwater management easements shall be provided by the property owner(s) as necessary for:

- [1] Access for facility inspections and maintenance.
 - [2] Preservation of stormwater runoff conveyance, infiltration, and detention areas and facilities, including flood routes for the one-hundred-year storm event.
 - [3] Direct maintenance access by heavy equipment to structures requiring regular cleanout.
- (b) The purpose of each easement shall be specified in the maintenance agreement signed by the property owner.
 - (c) Stormwater management easements are required for all areas used for off-site stormwater control, unless a waiver is granted by the SPGA.
 - (d) Easements shall be recorded with the Worcester County Registry of Deeds prior to issuance of a certificate of completion by the SPGA.
- (7) Changes to operation and maintenance plans.
 - (a) The owner(s) of the stormwater management system must notify the SPGA of changes in ownership or assignment of financial responsibility.
 - (b) The maintenance schedule in the maintenance agreement may be amended to achieve the purposes of this bylaw by mutual agreement of the SPGA and the responsible parties. Amendments must be in writing and signed by all responsible parties. Responsible parties shall include the owner(s), persons with financial responsibility, and persons with operational responsibility.
 - (8) Stormwater infrastructure shall be privately owned, inspected and maintained per the operation and maintenance plan approved for the project. Inspection and maintenance logs shall be provided to the Planning Board on a yearly basis by final day in June for the Town to use in preparation of its annual report to the EPA as part of the NPDES permit requirements.
 - (9) The O&M Plan shall include procedures for using dedicated funds, establishing an escrow account, and/or developing a maintenance contract, if determined appropriate to ensure adequate long-term maintenance.
 - (10) Stormwater Management operation and maintenance duties shall be recorded with the deed for each lot in a subdivision. The applicant may elect to setup a home owner's association (HOA) or other means to ensure all BMPs are inspected and maintained as required.
 - (11) Long-term operators responsible for O&M Plan implementation shall submit an annual report to the Planning Board documenting all inspection and maintenance completed on the stormwater system.
 - G.I. Surety. The SPGA may require the permittee to post, before the start of land disturbance or construction activity, a surety bond, cash, or other acceptable security. The form of the bond shall be approved by Town Counsel, and be in an amount deemed sufficient by the SPGA to ensure that the work will be completed in accordance with the permit. If the project is phased, the SPGA may release part of the bond as each phase is completed in compliance with the permit, but the bond may not be fully released until the SPGA has received the final inspection report as required by ~~Subsection H-J~~ and issued a certificate of completion.

H.J. Inspections.

- (1) At the discretion of the SPGA, periodic inspections of the stormwater management system construction may be conducted by the Town via the Planning Board, Conservation Commission, DPW or a professional engineer approved by the SPGA. Written reports shall include:
 - (a) Inspection date and location.
 - (b) Evaluation of compliance with the stormwater permit.
 - (c) Any variations from approved specifications or any violations of the stormwater management plan.
- (2) At a minimum, the SPGA or its designee may inspect the project site at the following stages:
 - (a) Initial site inspection: prior to approval of any plan.
 - (b) Erosion control inspection: to ensure erosion control practices are in accord with the filed plan.
 - (c) Bury inspection: prior to backfilling of any underground drainage stormwater conveyance structures.
 - (d) Final inspection. After the stormwater management system has been constructed and before the surety has been released, the applicant must submit a record plan detailing the actual stormwater management system as installed. The SPGA or its agent may inspect the system to confirm its "as-built" features. This inspector may also evaluate the effectiveness of the system in an actual storm. If the inspector finds the system to be adequate he shall so report to the SPGA, which will issue a certificate of completion. As-built plans shall be full-size plans that include all final grades, prepared by a professional engineer. All changes to project design should be clearly depicted on the as-built plans.
 - (e) If the system is found to be inadequate by virtue of physical evidence of operational failure, even though it was built as called for in the stormwater management plan, it shall be corrected by the permittee before the performance guarantee is released. If the permittee fails to act, the Town of Lunenburg may use the surety bond to complete the work. If the system does not comply with the plan, the permittee shall be notified in writing of the violation and the required corrective actions. A stop-work order shall be issued until any violations are corrected and all work previously completed has received approval by the SPGA.

IK. Waivers.

- (1) The SPGA may waive strict compliance with any requirement of this bylaw or the rules and regulations promulgated hereunder, where such action:
 - (a) Is allowed by federal, state and local statutes and/or regulations;
 - (b) Is in the public interest; and
 - (c) Is not inconsistent with the purpose and intent of this bylaw.
- (2) Any applicant may submit a written request to be granted such a waiver. Such a request shall be accompanied by an explanation or documentation supporting the waiver request and demonstrating that strict application of the bylaws does not further the purposes or objectives of this bylaw.
- (3) All waiver requests shall be discussed and voted on at the public hearing for the project.
- (4) If, in the SPGA's opinion, additional time or information is required for review of a waiver request, the SPGA may continue the hearing to a date certain announced at the meeting. In the event the applicant

objects to a continuance, or fails to provide requested information, the waiver request shall be denied.

~~JL~~. Certificate of completion. The SPGA will issue a letter certifying completion upon receipt and approval of the final inspection reports and/or upon otherwise determining that all work of the permit has been satisfactorily completed in conformance with this bylaw.

M. Building Permits. The Building Commissioner shall not issue a Building Permit without first confirming that and Stormwater Permit has been obtained or is otherwise not required for the project.

~~KN~~. Enforcement.

- (1) Enforcement agents. The Building Commissioner, in conjunction with the Planning Board, Conservation Commission and DPW Director, shall enforce this bylaw, regulations, orders, violation notices, and enforcement orders, and may pursue all civil and criminal remedies for such violations.

~~LO~~. Civil relief. If a person violates the provisions of this bylaw, regulations, a permit, notice, or order issued thereunder, the Planning Board, through the Building Commissioner, may seek injunctive relief in a court of competent jurisdiction restraining the person from activities which would create further violations or compelling the person to perform abatement or remediation of the violation.

~~MP~~. Orders.

- (1) The Planning Board, in conjunction with the Conservation Commission and DPW Director, may issue a written order to the Building Commissioner to enforce the provisions of this bylaw or the regulations thereunder, which may include:
 - (a) Elimination of illicit connections or discharges to the MS4;
 - (b) Performance of monitoring, analyses, and reporting;
 - (c) That unlawful discharges, practices, or operations shall cease and desist;
 - (d) Remediation of contamination in connection therewith.
- (2) If the Building Commissioner, in conjunction with the Planning Board, Conservation Commission and DPW Director, determines that abatement or remediation of contamination is required, the order shall set forth a deadline by which such abatement or remediation must be completed. Said order shall further advise that, should the violator or property owner fail to abate or perform remediation within the specified deadline, the Town may, at its option, undertake such work, and expenses thereof shall be charged to the violator.
- (3) Within 30 days after completing all measures necessary to abate the violation or to perform remediation, the violator and the property owner will be notified of the cost incurred by the Town, including administrative costs. The violator or property owner may file a written protest objecting to the amount or basis of costs with the Planning Board within 30 days of receipt of the notification of the cost incurred. If the amount due is not received by the expiration of the time in which to file a protest or within 30 days following a decision of the Planning Board affirming or reducing the costs, or from a final decision of a court of competent jurisdiction, the costs shall become a special assessment against the property owner and shall constitute a lien on the owner's property for the amount of said costs. Interest shall begin to accrue on any unpaid costs at the statutory rate provided in MGL c. 59, § 57 after the 31st day at which the costs first become due.

N. Noncriminal disposition; right of entry.

- (1) As an alternative to criminal prosecution or civil action, the Planning Board may elect, through the Building Commissioner, to utilize the noncriminal disposition procedure set forth in MGL c. 40, § 21D, and Chapter 1, Article 1, of the General Bylaws of the Town, in which case the Planning Board, its authorized agents and the Building Commissioner of the Town shall be the enforcing person. The penalty for the first violation shall be \$25. The penalty for the second violation shall be \$50. The penalty for the third violation shall be \$100 and \$200 for the fourth and each subsequent violation. Each day or part thereof that such violation occurs or continues shall constitute a separate offense.
- (2) Entry to perform duties under this bylaw. To the extent permitted by state law, or if authorized by the owner or other party in control of the property, the Planning Board, its agents, and employees may enter upon privately owned property for the purpose of performing their duties under this bylaw and regulations and may make or cause to be made such examination surveys or sampling as the Planning Board deems reasonably necessary.

OR. Appeals. The decisions or orders of the Planning Board, in conjunction with the Conservation Commission and DPW, shall be final. Further relief shall be to a court of competent jurisdiction.

PS. Remedies not exclusive. The remedies listed in this bylaw are not exclusive of any other remedies available under any applicable federal, state or local law.

QT. Severability. The invalidity of any section, provision, paragraph, sentence, or clause of these regulations shall not invalidate any section, provision, paragraph, sentence, or clause thereof, nor shall it invalidate any permit or determination that previously has been issued.

And you are directed to serve this Warrant by posting attested copies thereof in four or more public places in the Town, fourteen (14) days at least before the day appointed for said meeting, one of which places shall be the Town Hall, one at Whalom Variety Store in the Whalom-Bakerville District, one at Powell's and one at Jaxx Country Variety, and by mailing a copy to each dwelling unit in the Town in which a registered voter resides at least fourteen (14) days prior to such meeting. Hereof, fail not and make due return of this Warrant, with your doings thereon, to the Town Clerk at the time and place aforesaid.

Given under our hands this 20th day of October in the year Two Thousand and Twenty

LUNENBURG SELECT BOARD

A true copy attest:

Kathryn M. Herrick, Town Clerk

Tom Alonzo, Chairman

Michael Ray Jeffreys, Vice Chairman

Kathryn Adams, Clerk

James Marino, Member

Todd Dwyer, Member

FY21 Budget Adjustments from 6/13/20 ATM to 11/17/20 STM

Article 1, 11/17/2020 STM - FY21 Budget Adjustments				
Line #	Appropriation	Voted 6/13/20	11/17/20 STM Adj	Amended Appropriation
6	Group Health Insurance	\$ 2,415,326.19	\$ (57,871.00)	\$ 2,357,455.19
29	Technology Director	\$ 232,444.40	\$ 11,745.00	\$ 244,189.40
39	Police Department	\$ 1,807,654.69	\$ 30,161.00	\$ 1,837,815.69
43	Fire Department	\$ 1,104,714.36	\$ 38,928.00	\$ 1,143,642.36
54	General Health Expense	\$ 36,400.60	\$ 3,816.00	\$ 40,216.60
61	General Highway Maintenance	\$ 597,500.00	\$ 27,000.00	\$ 624,500.00
71	Facilities & Grounds	\$ 485,025.61	\$ 33,000.00	\$ 518,025.61
	Subtotal FY21 Omnibus Budget Adj	\$ 6,679,065.85	\$ 86,779.00	\$ 6,765,844.85
	Total FY21 Omnibus Budget Adjustments from Above		\$ 86,779.00	
	Change in State Assessments	\$ 1,082,507.00	\$ (45,931.00)	\$ 1,036,576.00
	Change in FY21 Capital Program	\$ 647,880.00	\$ 494,333.00	\$ 1,142,213.00
	OPEB Funding	\$ -	\$ 110,000.00	\$ 110,000.00
	Special Purpose Stabilization Funding	\$ -	\$ 250,000.00	\$ 250,000.00
	Prior Year Expense	\$ 476.21	\$ 150.00	\$ 626.21
	Purchase of Streetlights in order to convert to LED		\$ 91,000.00	\$ 91,000.00
	Regular Stabilization Account		\$ 212,252.00	\$ 212,252.00
	Total Expenditure Adjustments		\$ 1,198,583.00	
	6/13/20 ATM Revenue Surplus - Raise & Appropriate		\$ 1,056,425.41	
	Change in New Growth		\$ 135,332.00	
	Unexpended Capital Reappropriated		\$ 6,825.61	
	Total Revenue Adjustments		\$ 1,198,583.02	
	Current Surplus Available		\$ 0.02	

Article 2: FY2021 Deferred Capital Plan Projects

CIP#	Dept.	Project Name	Category	FY21 CP Deferred Projects for consideration at STM
PD17-02-A	Police	Police Vehicle, 1 Marked Replacement	Vehicle	\$67,000
DPW17-11	Highway	One Ton Dump with Plow	Vehicle	\$58,833
FM16-02	DPW	PSB, Carport Reconfiguration	Facilities	\$135,000
FM20-06	DPW	Senior Center, Kitchen Remodel	Facilities	\$22,000
LPS19-02	Schools	Admin Air Conditioning, THES	Facilities	\$28,000
FM16-11	DPW	Library, Carpet	Facilities	\$126,000
FM20-07	DPW	Ritter, Kitchen Remodel	Facilities	\$12,000
FM20-02	DPW	Ritter, ADA Ramp Design	Facilities	\$25,500
FM20-10	DPW	Cemetery Parking Lot	Facilities	\$20,000
		Total Capital Plan		\$494,333
	Funding:	Raise & appropriate		\$487,507
		Free cash		
		Unexpended Capital		\$6,826
		Premium Reserved for Capital		
		Total		\$494,333
		Grand Total of FY21 Capital Plan		\$1,142,213

PROJECTED REVENUES/EXPENDITURES FY2021 - 11/17/2020 STM

	FY20 BUDGETED	FY21 ATM 6/13/2020	FY21 STM 11/17/2020	EXPENDITURES	FY20 BUDGETED	FY21 ATM 6/13/2020	FY21 STM 11/17/2020
PROPERTY TAXES							
Prior Year Levy Limit	\$ 24,137,396.00	\$ 25,107,061.90	\$ 25,107,061.90	Maturing Debt	\$ 3,094,944.33	\$ 3,226,042.07	\$ 3,226,042.07
2 1/2% Increase	\$ 603,435.00	\$ 627,676.55	\$ 627,676.55	Interest/Issuance Costs on Debt	\$ 1,586,727.26	\$ 1,473,479.37	\$ 1,473,479.37
Estimated New Growth	\$ 366,231.00	\$ 173,400.00	\$ 308,732.00	Gen Gov Unclassified	\$ 3,224,861.32	\$ 3,246,916.39	\$ 3,189,045.39
Debt Exclusions	\$ 2,947,348.00	\$ 2,852,779.39	\$ 2,852,779.39	General Government	\$ 1,529,022.27	\$ 1,590,980.65	\$ 1,602,725.65
Override				Central Purchasing	\$ 60,303.00	\$ 56,280.00	\$ 56,280.00
				Protection	\$ 3,462,434.21	\$ 3,535,203.12	\$ 3,604,292.12
TAXES: Total	\$ 28,054,410.00	\$ 28,760,917.84	\$ 28,896,249.84	Health & Sanitation	\$ 77,316.94	\$ 79,055.93	\$ 82,871.93
				Public Assistance	\$ 249,663.78	\$ 265,587.84	\$ 265,587.84
				Facilities & Buildings	\$ 708,038.57	\$ 720,578.71	\$ 753,578.71
				Solid Waste/Recycling Program	\$ 218,450.00	\$ 218,634.00	\$ 218,634.00
STATE PROVIDED FUNDS				Department of Public Works	\$ 1,825,327.81	\$ 1,782,187.86	\$ 1,809,187.86
Cherry Sheet/State Aid	\$ 9,308,929.00	\$ 9,308,929.00	\$ 9,308,929.00	Schools	\$ 21,597,536.23	\$ 22,029,972.00	\$ 22,029,972.00
Police Career Incentive				Library	\$ 416,727.06	\$ 433,197.08	\$ 433,197.08
Additional Aid							
Subtotal State Aid	9,308,929.00	9,308,929.00	9,308,929.00	Omnibus Total	\$ 38,051,352.78	\$ 38,658,115.02	\$ 38,744,894.02
				Prior Year Budget Adjustments	\$ -		
PROJECTED LOCAL RECEIPTS				CHERRY SHEET CHARGES			
Local Receipts	\$ 3,010,153.00	\$ 3,010,153.00	\$ 3,010,153.00	Cherry Sheet Offset	\$ 199,182.00	\$ 199,182.00	\$ 199,182.00
Subtotal Receipts	3,010,153.00	3,010,153.00	3,010,153.00	State & County	\$ 191,720.00	\$ 191,720.00	\$ 172,888.00
				Choice/Charter Assessments	\$ 890,787.00	\$ 890,787.00	\$ 863,688.00
OTHER REVENUES				Changes to FY09 Assessments			
Overlay Surplus							
Free Cash	\$ 1,298,231.96	\$ 858,356.21	\$ 858,356.21	Subtotal CS Charges	\$ 1,281,689.00	\$ 1,281,689.00	\$ 1,235,758.00
Unexpended Articles	\$ 171,781.68		\$ 6,825.61				
Premium Reserved for Capital	\$ 6,350.49						
Comcast Tech Capital Fund	\$ 120,000.00						
Borrowing	\$ -			Allow for Abatements/Exemptions	\$ 174,997.02	\$ 120,000.00	\$ 120,000.00
Zoning Incentive Stabilization Fund				Worc Cty Retirement Assessment	\$ 1,354,353.00	\$ 1,502,144.00	\$ 1,502,144.00
MSBA Reimbursements	\$ 474,239.00	\$ 474,239.00	\$ 474,239.00	Tax Title	\$ 24,000.00	\$ 24,000.00	\$ 24,000.00
MSBA Reserve for Debt/Premiums	\$ 61,077.89	\$ 60,812.19	\$ 60,812.19	Capital Articles	\$ 1,684,100.00	\$ 647,880.00	\$ 1,142,213.00
				Purchase of Street Lights			\$ 91,000.00
Trust & Special Revenue Funds				Cemetery Improvements	\$ 35,000.00		
Sewer Enterprise				General Fund Articles			
Sewer Betterments				Peg Access FY20 Capital Expenses	\$ 120,000.00		
Water Betterments	\$ 56,837.50	\$ 55,837.50	\$ 55,837.50	Reserve Capacity Stabilization Fund	\$ 7,513.66		\$ 68,097.59
Student Transportation Offset Receipt Fund				Special Purpose Stabilization Fund(s)	\$ 288,222.00		\$ 250,000.00
Sewer Enterprise Retained Earnings	\$ 35,690.66	\$ 30,656.00	\$ 98,753.59	Sewer Capital Reserve	\$ 27,521.00	\$ 30,000.00	\$ 30,000.00
Cemetery Sale of Lots Account	\$ 35,000.00						
Artificial Turf Revolving Fund	\$ 43,500.00	\$ 46,473.00	\$ 46,473.00				
Sale of Real Estate Revolving Account				TC Passios Design/Engineering	\$ 265,000.00		
Subtotal Other Revenue	\$ 2,302,709.18	\$ 1,526,373.90	\$ 1,601,297.10	Court Judgements			
				OPEB Liability	\$ 150,000.00		\$ 110,000.00
				Sewer OPEB Liability	\$ 656.00	\$ 656.00	\$ 656.00
				Snow Removal Deficit	\$ -		
				Lane Property			
Other Financing Sources				Sewer Construction Project			
Septic Loan Revenue	\$ -			Prior Year Expense	\$ 500.00	\$ 476.21	\$ 626.21
				Transfer to Stabilization Fund	\$ 100,000.00	\$ 210,000.00	\$ 422,252.00
PEG Access Enterprise Fund	\$ 152,000.00	\$ 191,000.00	\$ 311,000.00	PEG Access Enterprise	\$ 152,000.00	\$ 143,000.00	\$ 263,000.00
Water Enterprise Fund	\$ 25,000.00	\$ 25,000.00	\$ 25,000.00	Water Enterprise	\$ 25,000.00	\$ 25,000.00	\$ 25,000.00
Solid Waste Enterprise Fund	\$ 302,000.00	\$ 302,000.00	\$ 302,000.00	Solid Waste Enterprise	\$ 302,000.00	\$ 302,000.00	\$ 302,000.00
Sewer Enterprise Fund	\$ 1,727,385.40	\$ 1,820,203.44	\$ 1,820,203.44	Sewer Enterprise	\$ 838,679.00	\$ 943,191.54	\$ 943,191.54
TOTAL REVENUE	\$44,882,586.58	\$44,944,577.18	\$45,274,832.38	TOTAL EXPENDITURES	\$ 44,882,583.46	\$ 43,888,151.77	\$ 45,274,832.36
				Credit/(Debit)	\$3.12	\$1,056,425.41	\$0.02